FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL ADVICE

Blue Cedar position statement

Blue Cedar Compliance, Inc. denied retaliating against Leora Benton. It stated that finance director Sable Finch projected a revenue shortfall and instructed operations to identify $612,000 in annualized payroll savings. The company said the resulting reduction in force eliminated seven positions across operations and support functions.

The position statement described Benton’s selection as a cost and redundancy decision. Her salary produced substantial savings, and Blue Cedar believed her portfolio could be absorbed by remaining managers. It denied that protected activity caused either the RIF or her selection.

Blue Cedar acknowledged Benton's January 17 complaint and February 3 charge as protected for purposes of its response, while reserving all legal arguments.

RIF criteria described to the agency

The company identified five weighted considerations: audit completion, client continuity, professional credentials, cross-region availability, and role redundancy. Human-resources director Mira Solis maintained a workbook that imported 2024 metrics and preserved calibration changes.

Blue Cedar said a four-person group met from March 4 through March 14. Pike made the final decision on March 21 after reviewing the savings scenarios. The position statement characterized manual adjustments as efforts to correct incomplete data rather than departures from the protocol.

It asserted that no single numerical rank controlled selection because leadership also had to maintain client coverage. The statement did not attach a contemporaneous document declaring that all five factors could be overridden without written justification.

Employer account of decisionmaker knowledge

Blue Cedar acknowledged receipt of the EEOC notice on February 10. It stated that Solis routed the packet to outside counsel and copied Pike because operations records might be needed. The company contended that Pike did not read the charge allegations before completing the RIF.

The position statement described the February 11 routing entry as an automated “opened” status that did not establish substantive review. It also said Pike’s February 12 calendar event, captioned “EEOC / staffing response,” concerned document preservation rather than Benton’s complaint.

Blue Cedar did not deny that Pike knew Benton had raised an employee-relations concern. It drew a distinction between general awareness and knowledge of protected opposition or participation. The routing log and calendar materials were supplied as separate exhibits.

Comparator response

Blue Cedar stated that Tessa Wynn, Omar Ibarra, and Calvin Keene were not interchangeable with Benton. Wynn managed a client transition, Ibarra volunteered for short-notice travel, and Keene maintained an audit-automation library. The company said those needs justified their retention.

The position statement acknowledged overlapping duties: each employee managed regulated-client audits, assigned field personnel, and reviewed remediation work. It maintained that the degree of overlap differed by portfolio.

Blue Cedar asserted that Benton's continuity score fell because two engagements could be handed off by June. It described Ibarra’s travel exception and Keene’s automation credit as business judgments. It did not explain why Wynn received continuity credit for a transition expected to end in May while Benton's later-ending transitions received none.

Selection and termination explanation

The company said Benton’s March 24 termination followed Pike’s March 21 approval of the final scenario. It characterized the six-week interval after agency notice as coincidence produced by the finance calendar and quarterly planning cycle.

Blue Cedar relied on Benton’s salary, the ability to redistribute her portfolio, and the need to preserve what it called scarce capabilities. It stated that the termination was not disciplinary and that Benton remained eligible for rehire.

The position statement referred once to Benton's lower “relative completion and availability profile.” The March 24 letter did not identify those matters; it described only budget savings and elimination of redundant management work. Blue Cedar said the later detail merely explained the same RIF decision.

Exhibits and closing certification

Blue Cedar listed the RIF protocol, workbook versions, comparator scorecards, March calibration minutes, Benton’s performance metrics, an organization chart, and the termination letter as supporting materials. It requested that the agency dismiss the charge.

The position statement was dated April 18, 2025. Solis certified that the listed records were copies maintained in the personnel and RIF files. The certification did not state that every workbook cell or explanation was created contemporaneously with the underlying event.

Blue Cedar preserved its position that legitimate savings and coverage needs caused the selection. Benton preserved her contrary contention that knowledge, selective scoring, timing, and changing explanations permit an inference of retaliation. The agency file records the positions; it does not adjudicate them.